intersex
NIGERIA
CENTER FOR HEALTHCARE DEVELOPMENT & YOUTH EMPOWERMENT



Nigeria Intersex Human Rights Violation Report. Vol. I

By Intersex Nigeria (Center for Healthcare Development and Youth Empowerment)

© 2025 Intersex Nigeria (Center for Healthcare Development and Youth Empowerment).

All rights reserved.
This publication may be used for advocacy, awareness-raising, and educational purposes only, provided that the content is not altered and full credit is given to Intersex Nigeria. No part of this report may be reproduced for commercial purposes without prior written permission.

For permissions or inquiries, please contact:
info@intersexnigeria.org

Contact Information

Intersex Nigeria (Center for Healthcare Development and Youth Empowerment)

Lagos and Abuja, Nigeria

info@intersexnigeria.org

+2349129057794

Visit our website

www.intersexnigeria.org

Social Media

@Intersex_nigeria_

@IntersexNigeria

@IntersexNigeria

Intersex Nigeria

Acknowledgement

Intersex Nigeria extends heartfelt gratitude to all the intersex individuals, parents, guardians, and community members who courageously shared their stories, experiences, and insights that form the backbone of this report. Your voices are powerful, and your resilience continues to shape the path toward justice and dignity for intersex persons in Nigeria.

We acknowledge the invaluable support of our partners: human rights organizations, feminist collectives, SOGIESC networks, child rights advocates, and disability justice groups. Their collaboration amplifies the intersectional realities faced by intersex persons and strengthens our collective call for systemic change.

Our deepest appreciation goes to the donors and institutions that provided financial and technical support, enabling the documentation and publication of this vital report. Your commitment to intersex rights and visibility in Nigeria is both timely and transformative.

Finally, we recognize the collective efforts of the Intersex Nigeria leadership and staff, whose unwavering dedication to social justice, inclusion, and bodily autonomy fuels the organization's mission. This report is a testament to their continued resolve to dismantle stigma and institutional violence, and to create a Nigeria where intersex people are seen, respected, and protected at all levels.

With Purple Pride,
Intersex Nigeria Team.

Executive Summary

Intersex Nigeria was established on November 25th, 2019 in response to the critical need for dedicated support, advocacy, and visibility for intersex persons in Nigeria. Our organization was born out of a recognition of the systemic challenges and societal stigmas faced by the intersex community.

Since its inception, Intersex Nigeria has consistently advocated for the rights of intersex persons, striving to create a society where intersex persons have rights to bodily autonomy and integrity without fear of discrimination or stigma. By employing a feminist lens, we have engaged in community organizing, conducting research, and spearheaded public advocacy efforts, significantly advancing the rights and wellbeing of intersex persons in Nigeria.

This report presents a detailed and evidence-based account of the human rights violations experienced by intersex individuals in Nigeria. It highlights systemic issues that have led to harmful practices, discrimination, and marginalization. Drawing from grassroots consultations, outreaches, and research documentation collected between January 2023 and December 2024, by Intersex Nigeria.

The findings highlight a deeply entrenched binary view of sex and gender, exacerbated by patriarchal, religious, and cultural norms, which reinforces a cycle of systemic marginalization and violations. Intersex individuals in Nigeria face multifaceted human rights violations in health, education, employment, and within religious and cultural systems. Key concerns spotlighted include non-consensual medical interventions on infants and minors to "normalize" their bodies, leading to lifelong physical and psychological trauma. Furthermore, a lack of legal recognition and protective frameworks results in significant barriers to accessing education, employment, and essential services, and difficulties in changing sex markers on official documents. Existing laws, such as the Same-Sex Marriage (Prohibition) Act, are often weaponized against intersex persons, promoting a climate of fear and self isolation.

The report underscores the urgent need for structural reforms in medical practices, legal systems, cultural frameworks, and institutional policies to ensure the protection, inclusion, and dignity of intersex persons across Nigeria.

Table of Content

Acknowledgement **I**

1. EXECUTIVE SUMMARY **II**

2. INTRODUCTION **01**

3. TERMINOLOGY EXPLAINER **02**

- Intersex 03
- Sex Characteristics 03
- Bodily Autonomy 03
- Non-consensual Medical Interventions 03
- Sex Marker 03
- Medical Violence 03

4. CONTEXT AND APPROACH **04**

1. International Human Rights Frameworks 05
2. Positive Practices 06

5. METHODOLOGY **09**

6. INTRODUCTION TO THE STORIES OF VIOLATION **10**

Safeguarding and Confidentiality Statement 10

6:1 CASES OF DOCUMENTED VIOLATIONS **11**

- Harmful Medical and Religious Practices 11
- Discrimination in Formal Education 12
- Employment Discrimination 13
- Legal and Policy Discrimination 14

7. ROOT CAUSES OF INTERSEX VIOLATION **15**

- Socio-cultural stigma 16
- Structural and Institutional Gaps 17
- Lack of Inclusive Data 18

8. RECOMMENDATIONS **19**

9. CONCLUSION **22**

Introduction

Intersex is an umbrella term for people born with **innate variations in sex characteristics** (including genitals, gonads, hormones, and chromosome patterns) that do not fit typical binary notions of male or female bodies. This puts them at a great risk all around the world including Nigeria. In Nigeria, **Intersex people face multifaceted human rights violations** across various sectors, including health, education, employment, religious and cultural systems.

According to the **United Nations, at least 1.7%** of the population, or, globally speaking, as of 2019, 131 million people have been born with intersex traits. This translate that almost 1 in 60 persons has a variation of sex characteristics that does not fit the typical medical and societal definition of male or female, and thus that at all ages they are at risk of being subjected to discrimination, stigmatization, violence and other forms of human rights violations on the basis of their variation of sex characteristics.

According to studies published in the Netherlands in 2014 at least 1 in 200 people are at risk of being subjected to invasive surgeries and other medical interventions, like hormonal treatment, based on being diagnosed by medical professionals as having a "Disorder of Sex Development" (DSD) or an "unspecified" diagnosis, such as "unspecified malformation of the male/female genitalia"[1]. Many of these interventions, especially but not limited to surgeries, are irreversible, deferrable, non-emergency interventions on healthy bodies and these interventions most often take place in infancy and childhood, without personal and fully informed consent.

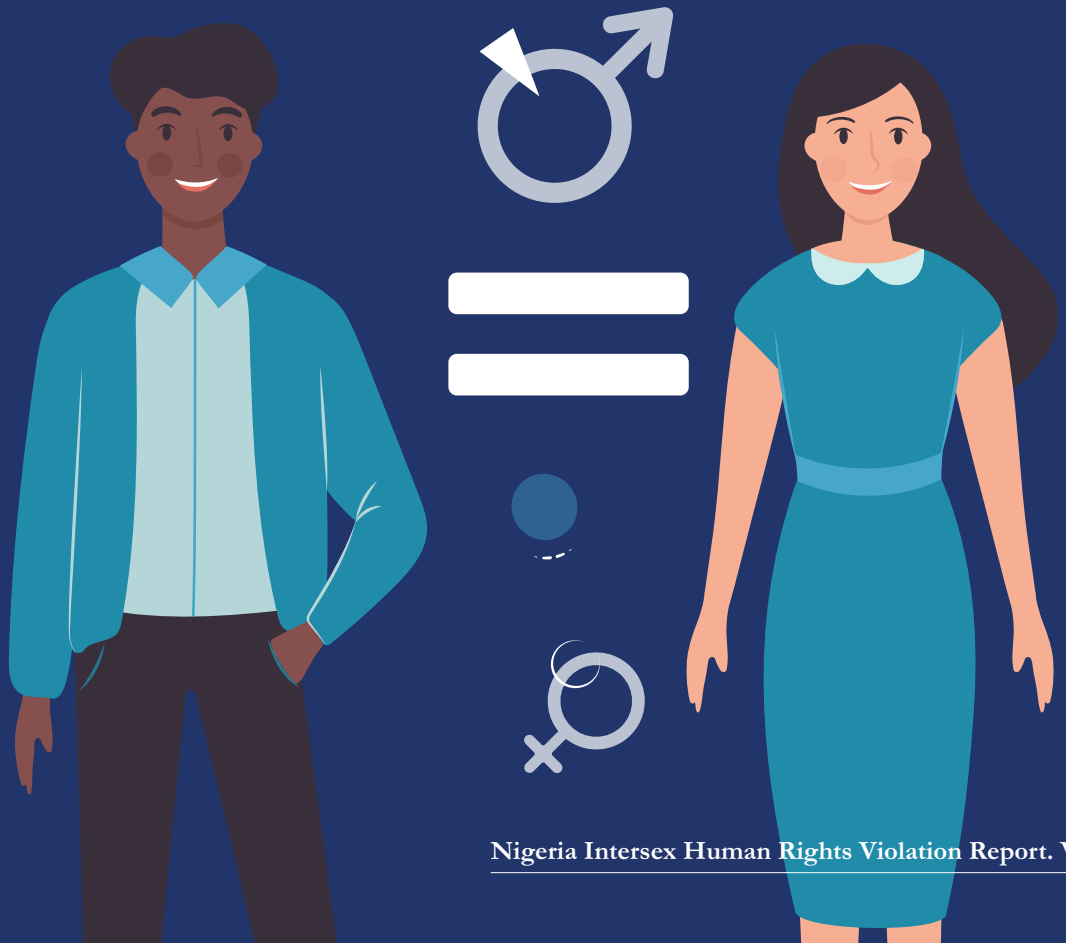
Harmful practices on intersex children, whether in medical or other settings, have lifelong consequences for physical and psychological health. Parents of intersex children may be pressured into agreeing to "normalizing" and unnecessary medical interventions in order to obtain identification documents for their children.[2] The deeply entrenched binary view of sex and gender, combined with patriarchal, religious, and cultural norms, reinforces a cycle of systemic marginalization and violation that greatly affects the quality of life of intersex people. This report details some of these violations, examines the **root causes,** and gives **recommendations** on integrating intersex people and protecting their rights.
There are also personal accounts that illustrate the lived realities of intersex individuals in Nigeria. These stories highlight the discrimination, medical violations, and social stigma intersex persons face daily. While names have been changed to protect identities, the experiences remain a stark reminder of the urgent need for policy reforms, legal protections, and societal understanding and acceptance.

[1] *The Netherlands Institute for Sociological Research (2014): Living with intersex/DSD. An exploratory study of the social situation of persons with intersex/DSD. Written by Jantine van Lisdonk.* https://research.vu.nl/en/publications/living-with-intersexdsd-an-exploratory-study-of-the-social-situat

[2] *Justicia Intersex and Zwischengeschlecht.org, "Intersex Genital Mutilations Human Rights Violations of Children With Variations of Sex Anatomy: NGO Report to the 6th and 7th Periodic Report of Argentina on the Convention against Torture (CAT)" (INT/CAT/CSS/ ARG/26985, March 2017) at 22.* https://intersex.shadowreport.org/post/2017/03/23/2017-CAT-Argentina-Thematic-Intersex-NGO-Report

03

Terminology Explainer



- **Intersex**

A term used to describe individuals born with innate variations in sex characteristics (such as genitals, gonads, chromosomes, or hormone patterns) that do not fit typical binary notions of male or female bodies.



- **Sex Characteristics**

Human biological features relating to sex, which include chromosomes, gonads, hormonal patterns, and internal and external reproductive organs. They are generally grouped into:Primary sex characteristics – directly related to reproduction (e.g., penis, testes, vagina, uterus). Secondary sex characteristics – physical traits that typically develop during puberty but are not directly involved in reproduction (e.g., breasts, facial hair, hip widening, body structure, voice change).



- **Bodily Autonomy**

The right of every individual to govern what happens to their body without external influence or coercion.



- **Non-consensual Medical Interventions**

Medical surgeries or procedures performed without the informed consent of the individual, often targeting intersex infants or minors to align their bodies with societal sex/gender norms.



- **Sex Marker**

The sex or gender label (e.g., male, female) recorded on official documents like birth certificates, passports, and national Ids.



- **Medical Violence**

Practices within medical settings that cause physical, psychological, or emotional harm, often without proper consent or consideration for the individual's rights and needs.



04

Context and Approach



1. International Human Rights Frameworks

Nigeria is a signatory to various international and regional human rights treaties that protect the rights of intersex persons. These include the United Nations Convention on the Rights of the Child (CRC), which mandates protection from harmful practices[3], and the Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (CAT), which prohibits non-consensual medical procedures that cause physical or psychological harm.

Nigeria is also a party to and assented to other human rights treaties, including the International Covenant on Civil and Political Rights (ICCPR), the International Covenant on Economic, Social and Cultural Rights (ICESCR), and the Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW). [4] *The Committee expresses concern about discrimination against intersex persons, namely, abuse, reported infanticide, forced marriage and the conduct of medically unnecessary procedures. The Committee recommends that the State party expedite the adoption of legislation prohibiting all forms of harmful traditional practices, investigate and prosecute the perpetrators of such practices, impose adequate sanctions and provide compensation to victims.*[5]

These treaties further strengthen the protection of intersex rights by addressing issues of discrimination, non-discrimination, and the right to bodily autonomy.

Additionally, the **African Charter on Human and Peoples' Rights, resolution 552 affirms** the right to dignity, equality, and freedom from discrimination for intersex persons in Africa. The resolution recognizes "that non-consensual and unnecessary surgical and other genital normalization procedures performed on intersex persons, in a medical or other setting, may cause them lifelong physical and psychological suffering, permanent sterility, incontinence, and loss of sexual pleasure."[6] Despite these commitments and recommendations, intersex persons in Nigeria continue to experience widespread violations that are inconsistent with these obligations and commitments to addressing issues of stigma and discrimination. In spite of harmonizing national, state and local laws with international frameworks, intersex people are still not recognized to be included in these domesticated international frameworks.

Everyone has the right to bodily and mental integrity, protected under international human rights instruments like the Universal Declaration of Human Rights (Article 3), the International Covenant on Civil and Political Rights **(Article 9**), and the Convention on the Rights of Persons with Disabilities **(Articles 16 and 17)**. This includes freedom from violence, torture, and ill-treatment. **States are obligated to prevent such abuses** by investigating and prosecuting perpetrators, providing remedies to victims, and addressing both the underlying causes and patterns of violence.

[3] https://www.ohchr.org/en/instruments-mechanisms/instruments/convention-rights-child
[4] https://indicators.ohchr.org/
[5] https://uhri.ohchr.org/en/document/fb00f701-fcc4-40b7-8e2c-2539c60860f0
[6] https://achpr.au.int/en/adopted-resolutions/resolution-promotion-and-protection-rights-intersex-persons

2. Positive Practices

The Kenya National Commission on Human Rights (KNCHR) published a report in 2018 on the rights of intersex people, which recognised "an urgent need for the government to investigate the frequency and the cause of intersex child deaths due to medical neglect and infanticide, and to develop a strategy to preserve this most basic right, the right to life".[7]

In Kenya, according to the Children Act 2022 "An intersex child shall have the right to be treated with dignity, and to be accorded appropriate medical treatment, special care, education, training and consideration as a special need category in social protection services".[8]

In 2015, Malta enacted legislation that protects all people, including intersex people, from discrimination and forced and coercive medical interventions on grounds of sex characteristics. The legislation states that: "The public service has the duty to ensure that unlawful sexual orientation, gender identity, gender expression and sex characteristics discrimination and harassment are eliminated, whilst its services must promote equality of opportunity to all, irrespective of sexual orientation, gender identity, gender expression and sex characteristics".[9]

In South Africa, the Judicial Matters Amendment Act, 2005 (Act 22 of 2005) amended the Promotion of Equality and Prevention of Unfair Discrimination Act, 2000 (Act 4 of 2000) to include intersex within its definition of sex[10].

While violations remain pervasive, there have been encouraging signs of progress on the international and regional fronts. However, Nigeria is yet to see any progress in terms of recognition and formulation of laws and policies that protects intersex people. Have seen a few healthcare practitioners and bodies, like the Federal Ministry of Health and Social Welfare, who have begun engaging in ethical conversations around the significance of informed consent and bodily autonomy, by engaging with Intersex Nigeria.

Some legal professionals and human rights organizations are increasingly acknowledging the existence of intersex people which is leading to a possibility of including intersex issues within the institutional frameworks in Nigeria and the broader human rights advocacy. Furthermore, collaborations with women, feminist, Child Rights, SOGIESC, and disability rights groups have created spaces for more intersectional conversations on intersex dignity and inclusion. These emerging alliances demonstrate the potential for a more just and affirming environment for intersex persons in Nigeria.

[7] https://www.knchr.org/Portals/0/GroupRightsReports/Equal%20In%20Dignity%20and%20Rights_Promoting%20The%20Rights%20Of%20Intersex%20Persons%20In%20Kenya.pdf?ver=2018-06-06-161118-323

[8] https://bettercarenetwork.org/sites/default/files/2022-10/kenya-the-children-act-2022.pdf

[9] https://legislation.mt/eli/cap/540/eng/pdf

[10] http://www.justice.gov.za/legislation/acts/2005-022.pdf

05

Methodology



The violation findings in this report are based on direct testimonies collated through online surveys and oral documented testimonies using quantitative and qualitative methods from intersex individuals, and parents of intersex children across different geo-political regions of Nigeria. These documentations were collated between January 2023 to December 2024 with strict adherence to ethical standards including informed consent, confidentiality, and the right to withdraw.

Participants shared personal experiences of medical, legal, and social rights violations, providing a firsthand account of the systemic challenges intersex persons face in Nigeria.

06

Introduction to the Stories of Violation



INTRODUCTION TO THE STORIES OF VIOLATION

While most intersex persons are uncomfortable sharing their stories or reporting the violations they experience socially, medically, and across other areas of their lives, this report highlights some of the cases that have been reported by intersex persons and their parents/guardians. Intersex Nigeria sees an opportunity to ensure that more intersex persons and their parents feel safe to speak about these violations without fear of repercussion.

Achieving this requires developing laws and policies that protect and recognize intersex people at all levels; providing inclusive, respectful, and ethical healthcare; and ensuring equal employment opportunities for intersex persons, especially those facing double or triple jeopardy. Intersex Nigeria recommends collective efforts toward advocacy and activism, organizing at all levels, and access to technical and financial support to influence relevant stakeholders. The experiences shared in this report are real-life accounts of intersex persons across diverse spectrums of age, ethnicity, and SOGIESC.

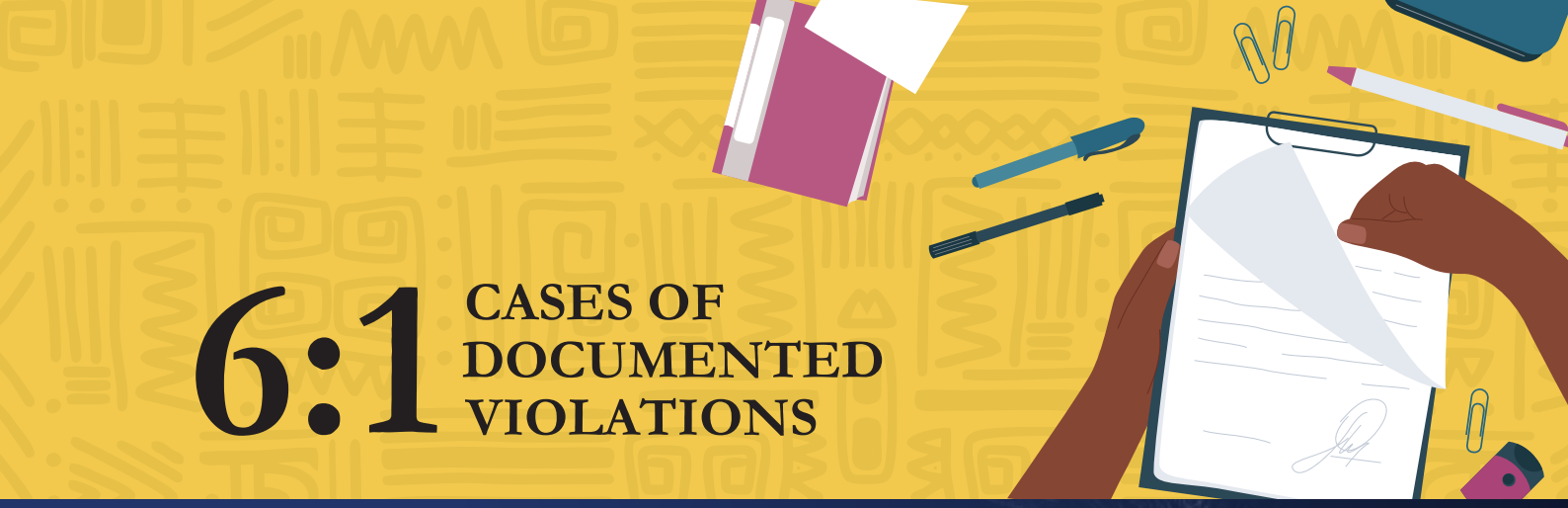
Safeguarding and Confidentiality Statement

In alignment with Intersex Nigeria's commitment to upholding the highest standards of ethical documentation, safeguarding, and human dignity, all personal stories included in this report have been carefully anonymized. The names and identifying details of individuals have been altered or withheld entirely to protect their privacy and ensure their safety.

This report contains sensitive and deeply personal testimonies of human rights violations experienced by intersex individuals and their families across Nigeria. These accounts were voluntarily shared with Intersex Nigeria through ethically guided processes that prioritized informed consent, confidentiality, the right to withdraw, and emotional well-being. At no point were individuals pressured to disclose personal details, and all information was documented with utmost care and respect for the participants' agency and lived experiences.

Pseudonyms have been used throughout the case stories to replace real names, and where appropriate, certain geographical, familial, or institutional identifiers have also been modified or omitted. This is essential not only to protect individuals from potential stigma, discrimination, or retaliation, but also to foster a safer environment where intersex persons can speak openly about the injustices they face.

By maintaining confidentiality and centering the principles of safeguarding, we aim to honor the courage of those who shared their stories while reinforcing our duty of care as human rights defenders. Intersex Nigeria remains steadfast in its commitment to ethical storytelling, survivor-centered advocacy, and trauma-informed reporting practices.



6:1 CASES OF DOCUMENTED VIOLATIONS

Harmful Medical and Religious Practices

Intersex persons in Nigeria face various forms of violence and harmful practices. Some of these instances have been documented by intersex Nigeria, such as non-consensual medical practices, unnecessary surgeries, and medical processes performed on children and un-consenting minors. **The Beyond the Binary Research by Intersex Nigeria** documents how medical professionals frequently lack the knowledge or sensitivity to adequately address intersex-specific needs.[11] Harmful practices, such as non-consensual surgeries performed to conform intersex bodies to binary norms, are alarmingly common. These procedures often lead to long-term physical and emotional trauma.

Many intersex persons avoid seeking healthcare services due to mistrust or previous discriminatory experiences, leaving their health vulnerabilities unaddressed. An example of this is the story of **Tola**, a 29-year-old intersex individual from Ogun State, who was assigned female at birth. Throughout his life, Tola endured various forms of human rights violations, ranging from educational institutions to the healthcare sector. He faced constant ridicule in his workplaces. During his teenage years, Tola did not develop typical female sex characteristics, forcing him to navigate his university years under the pretense of a gender he was not comfortable in (Tola was raised as a girl). To appear feminine and fit in, he resorted to wearing fake breasts, braiding his hair, and dressing in female attire.

In an attempt to "manifest" female attributes, Tola was subjected to prolonged dry fasting in church, without food or water for several days and later placed on herbal concussion for a long period of time, to ensure his genitals are developed to fit typical female sex characteristics. When these religious interventions proved ineffective, his mother began to suspect she was cursed. His experiences with the healthcare system were equally invasive and violating. During hospital visits, practitioners would examine his genitals without consent, often exclaiming their unfamiliarity with his anatomy and even taking unauthorized pictures. Other medical colleagues were also called in to invade his privacy without consent. Beyond healthcare, Tola faced discrimination in the banking system when attempting to change his gender marker to male after acknowledging his innate variations. He was accused of fraud by bank officials for seeking to update his account details.

Currently, Tola utilizes his social media platforms to raise awareness about the challenges faced by intersex persons in Nigeria. He holds onto the hope that intersex individuals will

[11] https://intersexnigeria.org/pdfs/BEYOND-THE-BINARY.pdf

one day gain legal access to change their sex markers to reflect their true realities. Tola passionately states, "*I do not know for how long we will continue to go through these issues. We need to hold these people accountable so that our lives can be bearable*".

In the same vein, **Joe**, who is a 14-year-old adolescent, experienced critical and unnecessary medical violations at birth. At three years old, Joe underwent surgical intervention to create a cosmetic penis, replacing his ambiguous genitalia with a constructed one. As Joe matured, he began developing female secondary sex characteristics, including breast growth. He now suffers from severe medical complications, experiencing intense monthly pains due to the build-up of blood. This menstrual-like blood passes out from his constructed penis. The development of breasts has caused Joe to feel ashamed, impacting his schooling. Joe's mother expresses profound regret for allowing doctors to "tamper" with her child, stating that she was misled into consenting to the initial surgery. Joe's story is a testament of the numerous long term effects of harmful corrective medical surgeries happening in the healthcare system in Nigeria.

Discrimination in Formal Education



In education, intersex persons often experience stigma and bullying from peers and teachers, creating a hostile learning environment. The lack of policies to protect or affirm their identities exacerbates the situation, forcing many to drop out of school. Families also withdraw intersex children from formal education to avoid societal scrutiny, effectively denying them the chance to achieve their potential. This educational marginalization sets the stage for lifelong limitations in accessing resources and opportunities. In the case of **Ide** who has endured multiple layers of violations throughout his life. These experiences forced him to drop out of school and left him struggling with deep-seated low self-esteem — ultimately hindering his ability to pursue a stable livelihood. Assigned female at birth, Ide developed only male physical characteristics as he grew older. Despite this, he has repeatedly been denied the legal right to update his sex marker on official documents, creating significant barriers in accessing education, employment, and essential services.

While navigating these challenges, Ide continues to live openly as an intersex man — a courageous act in a society that is yet to acknowledge or affirm his existence. He faces daily discrimination and institutional erasure, but his visibility is a form of resistance and resilience in the face of systemic injustice. Ide's story highlights the urgent need for legal recognition and protections for intersex persons in Nigeria, including the right to self-identify, access inclusive education and healthcare, and amend official documents to reflect one's lived reality.

Employment Discrimination



The job market in Nigeria reflects these compounded challenges. Employers often base their decisions on rigid gender/sex norms, leading to discrimination in hiring and workplace advancement. Coupled with educational disadvantages, this systemic **bias pushes many intersex persons into informal or precarious employment. Economic marginalization is further perpetuated by societal stigmatization, leaving intersex people in Nigeria struggling to attain financial independence.**

Highlighting **Ify's** story, Ify is an intersex person living with multiple layers of challenges and experiences. Ify is born with Mayer-Rokitansky-küster-Hauser (MRKH) syndrome a congenital variation that primarily affects their reproductive system where the uterus and vagina was underdeveloped. Ify has a disability due to complications from medications they were placed on to develop their sex characteristic which has made them face workplace discrimination, difficulty in securing and retaining employment, leaving them without a stable means of livelihood. Today, Ify lives with the compounded weight of unemployment, social isolation, and ongoing health issues that remain untreated due to lack of financial stability, and medical discrimination. Their story speaks not just to the invisibility and injustice of being intersex in Nigeria, but to the urgent need for inclusive workplace protection and access to healthcare.

The recent report published by Intersex Nigeria on **Medical Practices Surrounding Intersex Birth in Nigerian Hospitals,** highlights that in the last five years, doctors have seen **25.8% of** intersex cases with **Congenital Adrenal Hyperplasia** (CAH) been the most frequently reported diagnosis, present in about **56.2% of the cases seen by medical practitioners. In spite of these levels of diagnosis, intersex persons undergo medically unnecessary intervention that has life long-term physical and mental effects.**

As a deeply religious and culturally rooted society, Nigeria's societal norms largely reject anything perceived as deviating from established binaries of sex. For individuals like Tola and Ide, this manifests in traumatic experiences of forced "deliverance" and other religious interventions aimed at "correcting" their intersex variations. Some religious and cultural settings in Nigeria play a significant role in the stigmatization of intersex persons, often perpetuating harmful practices that undermine their well-being and human rights. **These practices, rooted in the belief that intersex variations are spiritual aberrations or curses, violate intersex persons' bodily autonomy and integrity**. Beyond religious settings, cultural norms also fuel discrimination, as intersex persons are seen as challenging the rigid structures of masculinity and femininity. This intersection of religious and cultural bias leaves many intersex persons isolated, stigmatized, and unable to participate in society fully. These challenges are further exacerbated by a lack of societal recognition and understanding of intersex realities.

[12] https://intersexnigeria.org/pdfs/Medical%20Practices%20Research.pdf

Legal and Policy Discrimination



Intersex persons in Nigeria face significant human rights violations due to the absence of protective laws and inclusive policies. Without legal recognition or frameworks, intersex individuals are excluded from essential social structures such as healthcare, education, sports, and employment, leading to widespread discrimination, isolation, and mental health challenges.

Jay's experience exemplifies these issues. Assigned female at birth, Jay's intersex traits became more pronounced during adolescence and adulthood (Jay developed male sex characteristics against his female assigned sex at birth), leading to allegations of impersonation. During Jay's compulsory one-year National Youth Corps Service-NYSC, Jay faced discrimination in hostel placement and later endured bias at the institution that reluctantly accepted him for his Primary Place of Assignment-PPA. Efforts to change the gender marker on official documents have been futile due to the absence of laws and standard procedures.

In sports, intersex athletes like **Ngo** face exclusion. Ngo's highlighted how she was ridiculed by her team mates who saw her ambiguous genitals during a public bath, they questioned her sex and accused her of being a man. She was reported to their team management and was expelled from the state's football team due to variation in her genitals, which ended her career, highlighting systemic barriers for intersex persons pursuing professional sports. The lack of legal avenues to change names or sex markers compounds these issues. Intersex persons like Tola, Ide, and Jay struggle with the administrative and societal hurdles of aligning official documents with their identities. This absence of inclusive policies not only perpetuates discrimination but also restricts intersex persons' access to vital services, particularly healthcare and enjoying human dignity.

07

Root Causes of Intersex Violation



The violations against intersex persons in Nigeria stem from deeply entrenched cultural taboos, societal stigma, and religious beliefs that marginalize persons born with innate variations in sex characteristics. Across Nigeria's 250+ ethnic groups, the binary view of sex deviations or differences are seen as taboo or abomination. These cultural norms often lead parents of intersex children to keep secret of their intersex child's variation and seek for "normalcy" through surgical interventions or isolation, denying intersex children opportunities to socialize and develop essential life skills. This secrecy often results in limited personal development, compounding the stigma and discrimination intersex persons face.

Socio-cultural stigma

Societal stigma plays a critical role in these violations, most Nigeria communities uphold patriarchal structure ascribed with higher value to male sex**.** Intersex persons, who do not conform to these expectations are marginalized and viewed as anomalies. This lack of classification renders their existence confusing for a society that assigns value based on gender. Consequently, intersex persons are often labeled "sick" or "medically deformed," driving harmful medical interventions and promoting social ostracism. In some cases, intersex children are even described as defective births, with calls to keep them hidden or let them die.

Religion further exacerbates these issues, Nigeria's predominantly Muslim and Christian population, guided by strict religious norms, influences not only societal attitudes but also laws and policies. These laws are often shaped by moral and religious sentiments rather than evidence or inclusivity, and fail to support intersex persons, whom society deems impure or evil.

Additionally, widespread ignorance and knowledge gaps about intersex variations perpetuates harmful stereotypes. This lack of awareness within the general public, medical community, and legal professions leads to misdiagnosis, mistreatment, and the failure to recognize intersex persons as a distinct group deserving of rights and protections. The baseline study from the Intersex Nigeria's VIRAL (Visibility, Inclusion and Recognition of Intersex person in Nigeria) report on the public perception of intersex persons and intersex genital mutilation in Nigeria, shows that **52% out of the 1000 respondents** got their information about intersex from the media, making the media a vital source of information dissemination.

Structural and Institutional Gaps

The lack of legal recognition for intersex persons in Nigeria is a significant barrier that undermines their visibility and hinders the development of policies to safeguard their well-being. This absence amplifies vulnerabilities, leaving intersex persons without the legal protections necessary to seek justice or challenge discrimination. Existing frameworks, such as the **Violence Against Persons Prohibition (VAPP) Act**, while targeting harmful practices like female genital mutilation,[13] do not address intersex genital mutilation. This oversight leaves intersex persons without legal recourse for violence, especially in medical settings, further perpetuating their marginalization.

The **Child Rights Act (CRA)** of 2003, a cornerstone of children's rights in Nigeria, also fails to address the specific needs of intersex children.[14] These children often face violations of bodily autonomy through non-consensual surgeries meant to "normalize" their bodies, resulting in lasting physical, medical and mental harm. While over 20 states have domesticated the CRA, over 12 states in Nigeria are yet to adopt and domesticate.[15] Advocacy is essential to include provisions in the CRA that prohibit such surgeries unless medically necessary. Additionally, intersex children face systemic healthcare discrimination, with treatments often aimed at forcing them into unconsented sex categories rather than addressing their unique health needs. Explicit inclusion of intersex children under the CRA's non-discrimination clauses and protections against harmful practices would be a crucial step forward.

Intersex persons also encounter significant obstacles related to **birth registration and identity documentation**. There is no option of flexible sex/gender marker change in Nigeria to suit their experiences and realities. Advocacy should focus on introducing flexible sex markers and provisions for future changes, ensuring inclusivity. The lack of legal recognition emboldens violence and discrimination against intersex persons, making it dangerous to report abuses or seek medical care, particularly when an individual's physical traits do not align with their assigned sex.

Lack of legal recognition and sex marker change for intersex persons perpetuates these violations. Intersex people with a different sex identity to their assigned sex can be assumed to be in a same sex relationship and be outside the cofines of the law following the **Same-Sex Marriage (Prohibition Act (SSMPA) of 2014**[16], leaving intersex persons vulnerable to legal threats, stigma, and institutional discrimination. Intersex persons navigating these challenges and realities are at risk of imprisonment and, in some regions, death by stoning.

[13] https://fida.org.ng/wp-content/uploads/2020/09/Violence-Against-Persons-Prohibition-Act-2015-1.pdf

[14] *A child shall not be subjected to any form of discrimination merely by reason of his belonging to a particular community or ethnic group or by reason of his place of origin, sex, religion or political opinion.* https://placng.org/lawsofnigeria/laws/C50.pdf

[15] https://www.nigeriarights.gov.ng/focus-areas/child-rights.html

Lack of Inclusive Data

One of the key frequently disregarded underlying factors of violations against intersex individuals in Nigeria is the absence of precise, detailed, and comprehensive statistics. The absence of reliable national statistics on the intersex population and their lived experiences severely limits visibility and evidence-based policymaking, programme design and service delivery. This invisibility within data systems reinforces systemic exclusion and weakens the accountability of institutions responsible for upholding human rights.

Currently, national surveys, health records, education databases and identity registration frameworks do not capture intersex persons. Intersex people are often subsumed under binary male/female classifications, thereby erasing their needs and experiences from official records. Consequently, key stakeholders, such as legislators, healthcare providers, educators and civil society actors, lack the necessary information to design inclusive interventions, allocate resources effectively or track progress in reducing stigma and discrimination.

National data systems, such as Nigeria's central platform for health sector data, the National Health Management Information System (NHMIS), do not currently recognise or accommodate intersex variations in their classification frameworks. Health professionals, state bodies, and even some human rights institutions lack the technical capacity, training and standard protocols to collect intersex-specific data accurately. This systemic knowledge gap has resulted in intersex issues being both unrecorded and misunderstood within Nigeria's healthcare and various relevant sectors.

Cultural taboos and societal stigma compound these legal and policy gaps. Cultural resistance to acknowledging sex and gender diversity reinforces harmful practices and discrimination, while healthcare systems lack the necessary protocols and training to meet the needs of intersex persons. Many healthcare providers are untrained in intersex issues, leading to mistreatment and violations of bodily autonomy. This lack of knowledge perpetuates harmful stereotypes and poor care delivery, leaving intersex persons with limited access to adequate healthcare.

The absence of tailored anti-discrimination laws and healthcare protections leaves intersex persons unable to seek justice or remedies when their rights are violated. Despite international and regional mechanisms **(Resolution 552 of the African Charter on Human and Peoples Rights -ACHPR[17] and Resolution A/HRC/55 from the United Nations Human Rights Council-UNHRC[18]),** and advocacy efforts from CSOs like **Intersex Nigeria**, the Nigerian legal and healthcare systems continue to have great oversight on the needs of intersex persons, highlighting the urgent need for inclusive legal frameworks and institutional reform.

[16] *4 (2) The public show of same sex amorous relationships directly or indirectly is prohibited. 3: Only a marriage contracted between a man and a woman shall be recognized as valid in Nigeria.* https://archive.gazettes.africa/archive/ng/2014/ng-government-gazette-dated-2014-01-08-no-2.pdf

08

Recommendations



To address the human rights violations faced by intersex persons in Nigeria, this report puts forward a series of recommendations targeting healthcare providers, legal institutions, policymakers, and civil society actors. These recommendations emphasize the urgent need for legal reforms, the promotion of bodily autonomy, sensitization and training for key sectors, and the development of inclusive policies that respect and affirm intersex rights. Strengthening partnerships across movements and centering the voices of intersex persons are also critical to achieving meaningful and lasting change. The following are some recommendations;

- **States must ensure** that national and sub-national laws are amended to explicitly prohibit discrimination against intersex persons, with clear reference to Sections 15(2), 42(1), and 17(3) of the Nigerian Constitution,[19] to guarantee equal protection under the law.

- **States must ensure** the creation of a **dedicated budgetary line for intersex-specific healthcare** in national and state healthcare budgets, to support the development and provision of inclusive, affirming, and accessible medical and psychosocial services tailored to intersex persons.

- **States must ensure** the legal prohibition of **non-consensual, medically unnecessary surgeries and treatments** on intersex children, in order to protect their rights to bodily autonomy, integrity, and informed consent.

- **States must ensure** that intersex persons can **change sex markers, names, and other identifying information** on official documents without facing unnecessary legal or medical barriers.

- **States must ensure** that **anti-bullying policies and inclusive curricula** are implemented in all educational institutions to protect intersex children and promote respect for bodily diversity and sex characteristics.

- **States must ensure** the development of **inclusive national sports guidelines** that allow intersex athletes to participate in sports without discrimination and with equal access to facilities, funding, and support services.

- **States must ensure** that intersex individuals have **access to justice** for past and current rights violations through accessible complaint mechanisms, and that law enforcement personnel receive training to handle intersex-related cases with sensitivity and professionalism.

- **States must ensure** the development and implementation of **human rights-based healthcare protocols** that guarantee intersex persons full access to their medical records, informed decision-making, and non-pathologizing healthcare options, including psychosocial support for individuals and their families.

- **States must ensure** that **intersex persons are included in national data collection efforts**, such as censuses and surveys, using disaggregated and rights-respecting methodologies to support evidence-based policies and services.

- **States must ensure** the **capacity building** of relevant stakeholders; educators, healthcare providers, law enforcement, and policymakers, on intersex issues and rights to promote inclusive service provision and reduce institutional bias.

- **States must ensure that financial institutions, under the regulatory oversight of the Central Bank of Nigeria (CBN), adopt inclusive practices that recognize and accommodate the diverse gender realities of intersex persons.** This includes **moving beyond binary gender options** in banking databases and allowing intersex individuals to **change their sex markers and legal identifiers** in alignment with their lived realities without facing stigma, suspicion, or accusations of fraud.

- **States must ensure** sustained **collaboration with intersex-led organizations** in the design, implementation, and monitoring of policies, services, and public education efforts, to ensure that intersex voices are centered in decision-making processes.

[17] https://achpr.au.int/en/adopted-resolutions/resolution-promotion-and-protection-rights-intersex-persons
[18] https://docs.un.org/en/A/HRC/55/L.9
[19] https://nigeriarights.gov.ng/files/constitution.pdf

09

Conclusions



Intersex people experience sexism, misogyny and suffer the impact of gender-based violence, including in medical practices that impose gender stereotypes like Intersex genital Mutilation/Female genital Mutilation and other sex reassignment surgeries to fit their bodies into societal binary notion of gender. This report sheds critical light on the pervasive, systemic, and often invisible human rights violations faced by intersex persons in Nigeria. Through first-hand accounts and documented patterns of abuse, it becomes clear that intersex individuals are subjected to harmful medical practices, educational and economic exclusion, religious and cultural stigma, and legal invisibility. The deeply entrenched societal biases, combined with the lack of legal protections and institutional support, continue to strip intersex persons of their dignity, autonomy, and equal participation in society.

To break this cycle of marginalization, there is an urgent need for comprehensive reforms. These include the recognition of intersex rights in national laws and policies, prohibition of non-consensual medical interventions, protection against discrimination in education and employment, and the creation of inclusive religious, cultural, and societal narratives that affirm intersex existence. Furthermore, it is essential to raise public awareness, build the capacity of healthcare and legal systems, and amplify the voices of intersex persons to ensure that they are not only seen but respected and empowered.

The time for action is now. A Nigeria where intersex persons are fully recognized, protected, and celebrated for their diversity is not only possible; it is necessary for the country's broader human rights advancement and social progress.

If you would like to report intersex violation cases as an intersex person, or you know an intersex person who has been violated in any form, you can reach out to us by sending a message to communications@intersexnigeria.org or send us a direct message on any of our social media platforms you have access to.

You can also call us on
+2349129057794
to make your report